

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, SEPTEMBER 24, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, SEPTEMBER 23, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0061181 UNIFUND CCR v. NAVARRO, RACHAEL

Defendant's Motion to Set Aside Void Judgment, Quash Service of Summons, and Dismiss Action

On April 23, 2014, plaintiff filed a complaint against defendant that alleges causes of action for breach of contract and common counts.

On August 21, 2014, the court entered default against defendant. The proof of service accompanying the request for default listed the address of service as 202 Granite Park Court in Lincoln, California 95648. Moreover, it described the individual personally served as a 44 year old female Caucasian with brown hair, blue eyes, 5 feet and 5 inches tall, with blue eyes.

On August 28, 2014, the court entered default judgment against defendant.

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

Defendant now timely moves to set aside the default and default judgment entered against her pursuant to Code of Civil Procedure section 473, subdivision (d) on the grounds the default and default judgment are void. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225.)

Here, defendant presents evidence that she was never served with the summons and complaint. At the time of service, she resided in Walnut Creek rather than in Lincoln. Moreover, the address listed in the proof of service was her parent's former real property, that they sold in 2012. Additionally, defendant—at the time of service—was 25 years old, weighed 115lbs, and had hazel eyes. None of these match the description in the proof of service.

Accordingly, the default and default judgment are void as service was improper. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214–15.) The default entered on August 21, 2014, and default judgment entered on August 28, 2014, are hereby set aside.

The court sets an Order to Show Cause re: Dismissal for **October 29, 2026, at 9:00 a.m. in Department 3.**

2. M-CV-0085411 RIEDEL, BRUCE v. COURTESY TOWING

Defendant New Alpha Three, Inc. dba D&M Courtesy Towing's Motion to Compel Depositions of Plaintiffs

Defendant's unopposed motion to compel plaintiffs Bruce Riedel and Susan Riedel's attendances at deposition is granted. (Code Civ. Proc., § 2025.450.) Plaintiffs Bruce Riedel and Susan Riedel shall appear for a deposition within 20 days after service of the order after hearing.

The request for sanctions is denied because it is unsupported by a declaration or other evidence.

///